

**IN THE HIGH COURT OF JHARKHAND AT RANCHI**

**A.B.A. No.493 of 2020**

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| 1. Rajkumar Yadav          |        |                |
| 2. Akhilesh Ram            |        |                |
| 3. Santosh Ram             |        |                |
| 4. Bhola Sao @ Santosh Sao | ...    | Petitioners    |
|                            | Versus |                |
| The State of Jharkhand     | ...    | Opposite Party |

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**CORAM: HON'BLE MR. JUSTICE ANIL KUMAR CHOUDHARY**

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| For the Petitioners | : Mr. Rajesh Kr. Singh, Advocate |
| For the State       | : Ms. Vipul Divya, Addl. P.P.    |

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**Order No.02 Dated- 04.02.2020**

Apprehending their arrest, the petitioners have moved this Court for grant of privilege of anticipatory bail in connection with Pratappur P.S. Case No.133 of 2019 registered under sections 414/272/290/34 of the Indian Penal Code and section 47(a) of the Excise Act.

Heard the learned counsel for the petitioners and learned Addl. P.P. for the State.

The Learned counsel for the petitioners submits that the allegation against the petitioners is that police seized 100 liters of Jawa Mahua, 60 litres of country made liquor and other utensils from the illegal furnace of the petitioner and it is alleged that 130 bottles each of 180 ml. with the writing thereon that they are for sale in Haryana were also seized. It is further submitted that the allegation against the petitioners are all false and the petitioners have no criminal antecedent as has been mentioned in paragraph no. 13 of the anticipatory bail application. It is next submitted that the petitioners are ready and willing to furnish sufficient security including cash security and undertake to cooperate with the investigation of the case. Hence, it is submitted that the petitioners be given the privilege of anticipatory bail.

Learned Addl. P.P. opposes the prayer for grant of anticipatory bail.

Considering the submissions of the counsels and the fact as discussed above, I am of the opinion that it is a fit case where the above named petitioners be given the privilege of anticipatory bail. Hence, in the event of their arrest or surrender within a period of four weeks from the date of this order, they shall be released on bail on depositing cash security of Rs.10,000/- each and on furnishing bail bond of Rs. 25,000/- (Rupees Twenty Five Thousand) each with two sureties of the like amount each to the satisfaction of learned S.D.J.M., Chatra, in connection with Pratappur P.S. Case No.133 of 2019 with the condition that the petitioners will cooperate with the investigation of the case and appear before the Investigating Officer as and when noticed by him and will furnish their mobile numbers and a copy of their Aadhar Cards in the court below with the undertaking that they will not change their mobile numbers during the pendency of the case subject to the conditions laid down under section 438 (2) Cr. P.C.

**(Anil Kumar Choudhary, J.)**

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